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IN THE FAMILY DIVISION

OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
IN AND FOR THE COUNTY OF WASHOE

Ponovan clack
Plaintiff / Petitioner / Joint Petitioner,

Case No. DV25-01799

vs.

Dept. No. _____

Megan McCafferty
Defendant / Respondent / Joint Petitioner. /

PROOF OF SERVICE

I served a true and correct copy of Opposition to Motion for Change of Custody and Visitation upon the following people:

1. Name: Ponovan clack Date: 12/11/25

By: ☒ Service by eFlex

☐ Personal Service

☐ Certified mail, return receipt attached

☐ U.S. Mail, postage prepaid

☐ Other: _____

Address where service occurred, if applicable: _____

If more room is needed, attach additional sheets.

A copy of this Proof of Service has been electronically served, mailed, or personally delivered to all parties or their lawyer.

This document does not contain the personal information of any person as defined by

NRS 603A.040.

DATED this (day) 11 day of (month) December, 2025

Submitted By: (Your signature) MJM

(Print your name) Megan McCafferty

1 Code: 2645
2 Name: Megan McCafferty
3 Address: 6550 Pyramidway sp37
Sparks NV 89436
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6
7 IN THE FAMILY DIVISION
8 OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA
9 IN AND FOR THE COUNTY OF WASHOE

10
11 Donovan Clark

12 Plaintiff / Petitioner / Joint Petitioner,

Case No. DV25-01799

13 vs.

Dept. No. _____

14 Megan McCafferty

15 Defendant / Respondent / Joint Petitioner.
16 /

17 OPPOSITION TO MOTION FOR CHANGE OF CUSTODY OR VISITATION

18 *(If you need more room on any section of this form, attach additional sheets.)*
19

20 **1. Child(ren).**

21 There is / are (number) 1 minor child(ren) in common born or adopted by the parties.

23 Child's Name	Age	Date of Birth
24 Alexis Clark	11	02/24/14
25		
26		
27		
28		

2. **Argument.** (explain why you oppose this motion)

I oppose this Motion because the statements made By Donovan Clark are false misleading and omit important safety concerns for our child Alexis. Donovan has a long history of abuse toward me ongoing drug use unstable housing and threatening behavior that makes unsupervised visitation unsafe. Donovan is actively violating the extended protection order, he has contacted my mother pretending to be me, made threatening statements and has attempted to intimidate me through third parties. He has been having his mother and friends drive repeatedly past my home and workplace as an intimidation tactic. Donovan has a long documented history of severe stimulant use disorder and mental health instability. His own VA records from 2024 show - "stimulant use disorder, Severe" - "Major Depressive Disorder" - "Bipolar Disorder" - "Statements admitting he struggles to stay sober and that things are 'getting harder'". These records do not prove current sobriety. He has admitted to me and the children that he continues to use and does not plan to stop. Donovan has bragged about sleeping under the house during a TPO in 2016. He has been living in his car and listed his admitted drug dealer's house as his

visitation address. These situations are not safe for my child. Donovan has a history of taking alexis without permission when the 2016 tpo expired. He took Alexis from the couch and ran with her. Police were involved but could not return her because the tpo had ended. This created traumatic fear for both my children and me. The only way I was able to even see her was when I agreed to come back and be his partner again. So I choose Alexis and came home to be isolated and fear of losing her forever. Donovan has never paid childcare or financially supported the children 100%. His filings falsely claim childcare expenses rental payments and financial contributions he has not made. I have supported the children for years on my income. Donovan's filings contain multiple proven lies. He claims

- I am "alienating" him
- I am unsafe or unstable
- He pays expenses he does not pay
- I have left jurisdiction (I have not I have lived in the same home for 12 years)
- I'm not Jewish
- My family wants the children removed (they do not)

amongst other outlandish statements. These statements are false and serve only

1 to harass me and Manipulate the court. Alexis
2 has Repeatedly stated she does not want
3 Visitation or contact with him. She has
4 Expressed fear and discomfort due to his behavior
5 yelling accusations, and Unpredictable emotional
6 out bursts while he is using drugs. Cps has
7 already evaluated me and determined I am a
8 safe parent. Cps told me directly that they
9 are not opening a case because they have no
10 concerns about my Parenting I am Requesting
11 that any Visitation be Supervised at a
12 safe location due to Safety concerns.
13 Unsupervised Visitation is not safe at this
14 time. For these Reasons I Respectfully Request
15 That Donovans Motion be denied and that
16 Visitation Remain Supervised at my discretion
17 as ordered in the existing EPO. I ask
18 Respectfully the court Carefully Review Donovan
19 Clark's Filings for the pattern of Manipulation
20 Contradictions and False statements as these
21 demonstrate his ongoing misuse of the
22 legal process to control intimidate and
23 Retaliate against me which mirror his
24 established history of Coercive Control
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his inconsistent statements fabricated
allegation and misuse of court procedures
Should be weighed carefully in evaluating
his credibility and his Requests Regarding
Custody and Visitation. These behaviors
Directly Impact the Safety and Emotional
Well-being of the Children and Myself. For
these Reasons I Request the Court deny
Mr. Clark's Motion, Start Supervised Visitation
and weigh his credibility accordingly when
Evaluating any Future Requests I also
Request my name be added to the lease
so I can seek Financial aid and Rent
assistance. He intentionally left me off
the home and lot lease as a form of
Control and Financial abuse when I worked
for years and helped pay the Majority of
the bills and home purchase.

1 **3. Best Interest Factors.** The requested custody and visitation schedule is **not** in the best interest
2 of the child(ren) for the following reasons (*answer each question. Describe in detail why the*
3 *custody and visitation schedule the other parent requested is not in the best interest of the*
4 *child(ren).*)

5
6 a. Is / Are the child(ren) old enough and / or capable of having a preference in the custody and
7 visitation? (☒ check one)

8 ☐ No

9 ☒ Yes, their age(s) and preference(s) is / are: 11 years old preference
10 is to be with Mother full time supervised visits

11 b. Is there a nomination of a guardian? (☒ check one)

12 ☒ No

13 ☐ Yes, the name(s) of the nominated guardian(s) is / are: _____
14 _____
15 _____

16 c. Is one parent more likely to allow the child(ren) to have frequent contact and a continuing
17 relationship with the other parent? (☒ check one)

18 ☐ No

19 ☒ Yes, I am because: _____
20 _____

21 ☒ Yes, the other parent is because: Mr. Clark has documented history
22 of interfering with communication making
23 Threats and manipulating the children and myself
24 He has used contact to intimidate me and the children
25 his unstable behavior (see attached for more)

26 d. What is the level of conflict like between you and the other parent?

27 High conflict EPO in place
28 _____

1 C. his unstable behavior and drug use make
2 unsupervised contact unsafe & support continued
3 contact as long as it is supervised and follows
4 court orders for the childrens safety and
5 emotional well-being
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1 e. Are you and the other parent able to cooperate to meet the needs of the child(ren)?

2 (☒ check one)

3 ☒ No, and the proposed custody and visitation schedule is not in the best interest of the
4 child(ren) because: Due to his ongoing harassment instability
5 and Epo in place

6 ☐ Yes

7
8 f. How is your mental and physical health? Stable I provide safe
9 consistent care

10
11 How is the other parent's mental and physical health? He has severe stimulant
12 use disorder bipolar and depression per VA Records
13 he has admitted he is still using Methamphetamine

14 g. What physical, developmental, and emotional needs do the child(ren) have?

15 She needs stability safety and calm she has
16 expressed fear of him and needs supervised visits

17
18 h. Explain how you interact with the child(ren)? I provide daily care
19 support routine and a safe home

20
21 Explain how the other parent interacts with the child(ren)? his interactions
22 are unstable unpredictable and cause fear and
23 distress

24 i. Will this custody and visitation schedule allow the child(ren) to maintain a relationship with
25 their siblings? (☒ check one)

26 ☐ Not Applicable

27 ☐ No

28 ☒ Yes

j. Has there been a history of parental abuse or neglect of the child(ren) or any siblings of the child(ren), or a history of domestic violence against the child(ren), you or the other parent, or any other person who lives with the child(ren)? (☒ check all that apply)

☐ No

☐ Yes, I have a history, the abuse, neglect, and / or act of domestic violence was

(include case number(s), if any and if known): ~~FV16-01822~~ ~~FV16-01822~~ ~~FV16-01822~~

~~TPO 25-01675 Donovan has a history of DV and drug related instability, and intimidation police involvement in 2016 2020 2023 2025~~

☒ Yes, the other parent has a history, the abuse, neglect, and / or act of domestic

violence was (include case number(s), if any and if known): FV16-01822

TPO 25-01675 Donovan has a history of DV and drug related instability and intimidation Police involvement in 2016 2020 2023 2025

k. Has either you or the other parent committed an act of abduction against the child(ren) or any other child? (☒ all that apply)

☐ No

☐ Yes, I have a history, the act of abduction was: _____

☒ Yes, the other parent has a history, the act of abduction was: in 2016 when

the tpo expired he abducted alexis and flee and hid with her she could not be returned due to the tpo ending

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1 **4. Other Cases.**

2 **a. Participation in Other Cases:** Have you ever participated in any case concerning this /
3 these child(ren) as a party, witness, or in some other capacity? (☒ *check one*)

4 ☐ No.

5 ☒ Yes, I have participated in the following cases concerning these child(ren) (*provide*
6 *all specifics including the state, the court name, child(ren) involved, the case*
7 *number, and the date of the child custody order, if any*):

8 2016 tpo involving Donovan Clark - NV - Related
9 DV and Child Safety CPS Case 2023-2024 NV

10
11 **b. Knowledge of Other Cases:** Do you know of any other case that could affect this case, such
12 as other custody cases, domestic violence cases, protection order cases, or
13 adoption/terminations? (☒ *check one*)

14 ☒ No.

15 ☐ Yes, the following cases that could affect this case (*give all specifics including the*
16 *state, the court name, the parties involved, the case number, and the type of case*):

17 _____
18 _____

19
20 **c. Person(s) Who Claim Custody / Visitation:** Is there anyone other than yourself or the
21 other parties to this case who has custody of the child(ren) or who claim a right to custody or
22 visitation with the child(ren)? (☒ *check one*)

23 ☒ No.

24 ☐ Yes, the following people have custody or claim custody/visitation of the child(ren)
25 (*list names and addresses of anyone who claims custody/visitation rights*):

26 _____
27 _____

5. Motion/Opposition Notice.

A.	Mark the CORRECT ANSWER with a X.	Yes	No
	1. Has a final decree or custody order been entered in this case? If <u>yes</u> , then continue to Question 2. If <u>no</u> , you do not need to answer any other questions.		X
	2. Is this a motion or an opposition to a motion filed to change a final order? If <u>yes</u> , then continue to Question 3. If <u>no</u> , you do not need to answer any other question.		
	3. Is this a motion or an opposition to a motion filed only to change the amount of child support?		
	4. Is this a motion or an opposition to a motion for reconsideration or a new trial <u>and</u> the motion was filed within 14 days of the Judge's Order?		
	<u>If</u> the answer to Question 4 is <u>yes</u> , write in the <u>filing date</u> found on the front page of the Judge's Order.	<u>Date</u>	
B.	If you answered NO to either Question 1 or 2, or YES to Question 3 or 4, you are <u>exempt</u> from a filing fee. However, if the Court later determines you should have paid the filing fee, your motion will <u>not</u> be decided until the fee is paid.		

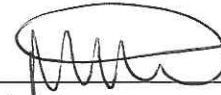
This document does not contain the personal information of any person as defined by NRS 603A.040.

I declare under penalty of perjury under the law of the State of Nevada that the foregoing is true and correct.

DATED this (day) 11 day of (month) December, 2025.

Submitted By: (Your signature) _____

(Print your name) _____



Megan McCafferty

When to File: You have **seven (7) days**, beginning the day after service upon you, to reply to this Opposition. After the time to reply has passed, the person who filed this Opposition may submit it to the Court for decision. **Please note: Parties who are served by U.S. Mail have three (3) additional days.**